



CHAPTER xiv.

An Act for conferring further powers upon the Sutton Gas Company. A.D. 1904.
[24th June 1904.]

WHEREAS by the Sutton Gas Act 1876 (in this Act called "the Act of 1876") the Sutton Gas Company (in this Act called "the Company") were incorporated and were (amongst other things) authorised to manufacture and supply gas in the parishes of Sutton Cheam and Banstead in the county of Surrey :

And whereas the present share capital of the Company is sixty thousand pounds divided into two thousand five hundred shares of ten pounds each entitled to dividend at the rate of ten pounds per centum per annum (now known and in this Act referred to as "original capital") and three thousand five hundred shares of ten pounds each entitled to dividend at the rate of seven pounds per centum per annum (now known and in this Act referred to as "additional capital") :

And whereas the Company have created and issued the said share capital and the whole thereof has been or shortly will be paid up :

And whereas the Company are authorised to borrow and have borrowed on mortgage in respect of the said share capital of sixty thousand pounds the sum of thirteen thousand seven hundred and fifty pounds :

And whereas it is expedient that the existing capital of the Company should be converted and consolidated as provided by this Act :

And whereas the demand for gas within the parishes aforesaid has increased and is increasing and it is expedient that the Company should be authorised to extend and improve their

A.D. 1904. existing gasworks as herein-after provided and to raise additional capital for the purposes of their undertaking :

And whereas the Company now supply gas at a fixed maximum price and it is expedient that provision should be made as in this Act contained whereby the rate of dividend payable by the Company upon their ordinary capital should be regulated according to the price charged for gas and that the other powers herein-after mentioned should be conferred on the Company :

And whereas the objects aforesaid cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Sutton Gas Act 1904 and the Act of 1876 and this Act may be cited together as the Sutton Gas Acts 1876 and 1904.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act namely :—

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building” :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company ;

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The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

Part I (relating to cancellation and surrender of shares)

Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

And the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement).

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpreta-
tion.

4. Subject to the provisions of this Act the Company may maintain alter improve enlarge extend and renew or discontinue the existing gas and other works and erect make and maintain alter improve enlarge extend and renew or discontinue additional and other gasworks for the manufacture of gas or inflammable air from coal peat oil or other materials yielding gas or inflammable air of what nature soever and convert or utilise and distribute materials used in and about the manufacture of gas or inflammable air as aforesaid and of residual products resulting from such manufacture upon the lands and hereditaments described in the schedule to this Act or some part or parts thereof respectively and upon those lands they may accordingly manufacture gas and inflammable air and manufacture convert utilise and distribute such materials and residual products as aforesaid and also on those lands store gas and inflammable air and erect houses and other buildings and the Company may also from time to time provide lay down maintain alter improve enlarge extend and renew or discontinue drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such other acts as they may think proper for making storing and supplying gas or inflammable air within the limits of supply of the Company and may supply gas or inflammable air accordingly and may deal in and sell and dispose of coal and also lime coke tar and other residual and manufactured products and other matters and things and carry on the business usually carried on by gas companies or

Powers as to
construction
and mainte-
nance of
gasworks

A.D. 1904. — by companies or persons dealing in any of the matters and things aforesaid and may manufacture purchase or hire and supply gas meters fittings and other apparatus.

Power to
purchase
lands by
agreement.

5. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands now belonging to or authorised to be acquired by them any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Dwelling-
houses for
persons in
Company's
employ.

6. The Company may in addition to any other lands which they are by this Act authorised to acquire purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any of such buildings upon any lands for the time being belonging or leased to the Company.

Power to sell
and lease
lands.

7. The Company may sell and dispose of or may let on lease for such period as they think fit any lands for the time being belonging or leased to them and which may not at the time be required for the purposes of their undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit And notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section.

Conversion
of existing
original and
additional
shares of
Company.

8.—(1) As from the first day of January one thousand nine hundred and five all the existing original and additional capital shall be converted and consolidated into one class of stock to be called ordinary stock bearing a uniform dividend (subject to the provisions of the section of this Act of which the marginal note is "Sliding scale") at the rate of five pounds per centum per annum according to the following scales (that is to say) :—

For every existing original share entitled to a maximum dividend of ten per centum per annum twenty pounds of ordinary stock :

For every existing additional share entitled to a maximum dividend of seven per centum per annum fourteen pounds of ordinary stock : A.D. 1904.

And notwithstanding anything contained in section 27 of the Act of 1876 the Company may call up the amount unpaid on any shares in the additional capital not fully paid up at the date of the passing of this Act by calls of such amount not exceeding two pounds per share at such intervals not exceeding one month as they may think fit and such calls shall be payable at the expiration of fourteen days after the call is made.

(2) As on the said first day of January one thousand nine hundred and five there shall be by virtue of this Act created such nominal amount of five per centum ordinary stock as shall be necessary for the purpose of carrying into effect such conversions and the amounts of ordinary stock to which the holders of such existing shares by virtue of this Act respectively become entitled in substitution for such existing shares shall be vested in such holders as from the said first day of January one thousand nine hundred and five and shall be forthwith registered in their respective names in the books of the Company Provided that notwithstanding anything in this Act contained no person shall become entitled under this Act to any fractional part of a pound of ordinary stock but in every case in which any such person would but for this enactment have become entitled to a fractional part of a pound of such stock the Company may at their option receive from such person such a further sum in cash as will make up an even pound or pay to such person in cash such a sum as will equal the market value of such fractional part.

Provided that neither such conversion nor anything in this Act contained shall have the effect (except as provided by the section of this Act of which the marginal note is " Application of premium arising on issue of shares or stock ") of increasing the maximum reserve fund prescribed by section 31 of the Gasworks Clauses Act 1847.

9. All ordinary stock issued to holders of existing shares in the capital of the Company under this Act shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the existing shares for which the ordinary stock is substituted were held or were subject to immediately before the said first day of January one thousand nine hundred and five and shall be dealt with applied and disposed of accordingly and so as to give

Ordinary stock to be held on same trusts &c. as shares for which it is substituted.

A.D. 1904. — effect to and not to revoke any deed will or other instrument disposing of or affecting any such of the existing shares and trustees executors or administrators or other incapacitated parties may accept ordinary stock in substitution for existing shares held by them in the capital of the Company and may retain dispose of or otherwise deal with the same as they might have retained disposed of or otherwise dealt with such existing shares.

Certificates
to be called
in and others
issued.

10. The Company shall call in the certificates of the shares for which ordinary stock shall be substituted by virtue of this Act and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of ordinary stock of the amounts and descriptions to which those proprietors are by this Act respectively entitled but no proprietor shall be entitled to a certificate of the ordinary stock so substituted for the existing shares held by him until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the Company may require. Provided always that until the issue of the certificate of such ordinary stock the existing certificate for which such new certificate is to be substituted shall according to the amounts of ordinary stock to be substituted by virtue of this Act for the existing shares which they respectively represent have and possess the same rights and advantages as if they were certificates for those respective amounts of ordinary stock which are to be so substituted for such existing shares but if any holder of any existing shares of the Company neglect or omit to send or deliver to the Company his existing certificate for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book the Company may suspend the payment of any dividend declared or made payable upon or in respect of the ordinary stock so held by him until such existing certificate is sent or delivered to the Company or is proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed. The certificates of any ordinary stock delivered up to the Company under this section shall be cancelled.

Transfers
of shares
although by
present name
to be valid.

11. All transfers or other dispositions of any existing shares in the capital of the Company as existing up to the conversion thereof into ordinary stock by virtue of this Act shall after such

conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers for the respective amounts of ordinary stock which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof respectively shall describe the same by the name or denomination which the shares transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any specific or nominal amount of any such existing shares converted by this Act into stock of larger nominal amount shall be held to apply to a nominal amount of ordinary stock which is substituted for such existing shares equal to the amount of such stock into which such existing shares shall have been converted under the provisions of this Act.

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12.—(1) All ordinary stock of the Company shall be issued and be transferable only in amounts of one pound or multiples of one pound.

Stock to be transferable in multiples of one pound.

(2) Notice of this enactment shall be stated in all certificates of such stock.

13. Holders of ordinary stock and of shares or stock created under the authority of this Act shall be entitled to participate in the dividends and profits of the Company according to the amount of their respective interests in such shares or stock and subject to the provisions of this Act such interests shall in proportion to the nominal amounts of such shares or stock confer on the respective holders thereof the same privileges and advantages as would have been conferred by existing shares of equal amount in the existing capital of the Company except as regards the scale of voting which shall be as follows (that is to say) Every holder of ordinary shares or stock shall be entitled to one vote for every share or every ten pounds of stock held by him Provided always that none of such privileges or advantages except participation in the dividends and profits of the Company shall be conferred by any aliquot part of such amount of ordinary stock as would not if existing in such existing shares have conferred such privileges or advantages.

Rights of shareholders and stockholders.

14. Subject to the provisions of this Act sections 7 10 to 13 and 62 to 64 of the Companies Clauses Consolidation Act 1845 shall extend and apply to the ordinary stock and sections 18

Application of provisions of Companies Clauses

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Consolidation
Act 1845 to
ordinary
stock.

to 20 of that Act shall be deemed and construed to include and apply to ordinary stock and dividends thereon as if such stock and dividends respectively had been expressly named in the said sections.

Additional
capital.

15. The Company may raise additional capital not exceeding in the whole sixty thousand pounds by the creation and issue of preference shares or stock or new ordinary shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of sixty thousand pounds. Provided also that the Company shall not raise by the issue of preference shares or stock a greater amount of such additional capital than fifty thousand pounds.

New shares
or stock to
be offered by
auction or
tender.

16. Notwithstanding anything in this Act contained when any shares or stock created under the powers of the section of this Act of which the marginal note is "Additional capital" are or is to be issued and before offering the same to the holders of any other shares or stock in the Company and whether the ordinary shares or stock of the Company are or is at a premium or not the Company may with the approval of and in the manner directed by the Board of Trade to be signified in writing under the hand of an assistant secretary of the Board offer to all the consumers of the Company's gas and to all the persons in the employ of the Company or partly to one and partly to the other of such classes of persons and in such proportions as the directors may determine the shares or stock so to be issued at such a price as will yield to the purchaser a return of not more than five per centum per annum on the amount of his purchase money.

Any shares or stock not so offered or so offered and not accepted within one month after such offer is made shall be offered for sale by public auction or tender in such manner at such terms and subject to such conditions of sale as the Company shall from time to time determine :

Provided always that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner And provided that no priority of tender shall be allowed to any holder of stock in the Company except that if any bidding or offer by tender of any holder or holders of stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of stock shall be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock in the Company.

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17. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase money to be paid within three months.

18. The intention to sell any such shares or stock whether to consumers or to persons employed by the Company or by auction or by tender shall be communicated in writing to the clerks to the district councils for every district wholly or partly included in the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

Notice to be given as to sale of shares or stock.

19. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided

Disposal of shares or stock not sold by auction or tender.

A.D. 1904. always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary stock at not less than the last-mentioned reserved price and so from time to time until the whole of such stock is sold.

Application
of premium
arising on
issue of
shares or
stock.

20. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works and undertaking of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that all such sums shall be deemed to be part of the nominal and paid up capital of the Company for the purpose of determining the powers of the Company to raise money by borrowing and the amounts they may place to the reserve renewal or insurance fund respectively.

Privileges
&c. of
holders of
additional
capital.

21. Subject to the provisions of this Act the additional capital raised by the Company under this Act shall be part of the general capital of the Company and save as otherwise provided in respect of such capital by or under the provisions of this Act the holders of shares or stock in such additional capital shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their shares or stock from time to time paid up and be subject to the like provisions and liabilities as the holders of ordinary stock issued under this Act.

Power to
borrow in
respect of
additional
capital.

22. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have

been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares or stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. A.D. 1904.

23. The Company may in respect of the powers of raising money on mortgage conferred upon them by this Act create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act. Debenture stock.

24. The provisions of this Act with respect to the sale by public auction or tender of shares and stock created under the authority of this Act the application of the premiums arising from such sale and other the provisions incidental to such sale shall apply *mutatis mutandis* to and in relation to the granting of mortgages and issue of debenture stock by the Company under this Act. Debenture stock &c. to be disposed of by auction or tender.

25. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rent-charge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company. Priority of mortgages and debenture stock over other debts.

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Existing mortgages to have priority.

26. All mortgages granted by the Company in pursuance of the Act of 1876 and subsisting at the passing of this Act shall during the continuance of such mortgages and subject to the provisions of the Act of 1876 have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Arrears may be enforced by appointment of a receiver.

27. Section 33 of the Act of 1876 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Application of moneys.

28. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Receipt in case of persons not *sui juris*.

29. If any money is payable to a shareholder or stockholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Qualification of directors.

30. As from the first day of January one thousand nine hundred and five section 39 (Qualification of directors) of the Act of 1876 shall be and the same is hereby repealed and as from that date the qualification of a director of the Company shall be the possession in his own right of paid-up capital of the Company of the nominal amount of two hundred pounds at least.

Qualification of auditors.

31. As from the first day of January one thousand nine hundred and five it shall not be necessary for the auditors appointed by the Company to hold shares in the capital of the Company.

Insurance fund.

32. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend on the ordinary capital at the authorised rate the excess beyond the sum

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necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the said capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

33. If the clear profits of the undertaking of the Company in any half year amount to a larger sum than is sufficient to pay the dividend at the authorised rate on the ordinary stock of the Company the excess or such portion of it as is not carried to the insurance fund or the renewal fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Application of excess of profits over authorised rate of dividend.

34. Where in any year the dividend of the Company on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in securities in which trustees are for the time being authorised to invest moneys and the dividends and interest arising from such securities may also be invested in the same or the like securities in order

Power to create a reserve fund out of dividends in excess of standard rate of dividend and application thereof.

A.D. 1904. — that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Renewals.

35. The directors of the Company may in each half year if they think fit appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum on the paid-up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal and repair of their gas-works mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes :

Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth part of the paid-up capital for the time being of the Company :

Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at any time reduced below such sum it may thereafter be made up to that sum and so from time to time as often as such reduction shall happen.

Limitation of profits on capital raised under this Act.

36. The profits of the Company to be divided amongst the holders of the capital of the Company whether ordinary or preference capital shall not (except as by this Act provided) exceed the rate of five pounds per centum per annum and such rate is in this Act referred to as "the standard rate of dividend."

Repeal of section 49 of Act of 1876.

37. On and as from the first day of January one thousand nine hundred and five section 49 (Limiting price of gas) of the Act of 1876 shall be and the same is hereby repealed.

Sliding scale.

38. On and after the said first day of January one thousand nine hundred and five the price to be charged by the Company

for gas supplied by them within the parishes of Sutton and Cheam except the portions of the last-named parish hereinafter defined and known and hereinafter referred to as Worcester Park that is to say so much thereof as lies to the north-west of the London Road including that road and so much thereof as is bounded by London Road Hemingford Road and Malden Road to persons who shall burn the same by meter shall be three shillings and twopence per one thousand cubic feet and for gas supplied by them within the parish of Banstead and Worcester Park three shillings and eightpence per one thousand cubic feet:

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Provided that the Company may increase or reduce the price charged by them for gas above or below the said standard prices subject to a reduction or increase in the standard rate of dividend on the ordinary shares or stock as follows:—

In respect of any half year during any part of which the prices charged by the Company for gas shall have been one penny or part of a penny above the standard prices respectively the dividend payable by the Company for that half year shall in respect of each penny or part of a penny by which the standard prices shall have been increased be reduced below the standard rate of dividend by one shilling and threepence upon every one hundred pounds of ordinary stock but such reduction shall be calculated only upon whichever of the said prices shall have been increased to the greater extent:

In respect of any half year during the whole of which the prices charged by the Company for gas shall have been one penny or more below the standard prices respectively the dividend payable by the Company for that half year may in respect of each penny by which the standard prices shall have been reduced be increased above the standard rate of dividend by one shilling and threepence upon every one hundred pounds of ordinary stock but such increase shall be calculated only upon whichever of the said prices shall have been reduced to the less extent:

Provided that if in any half year the dividend payable shall comprise a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

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Charges for
gas supplied
by means of
prepayment
meters.

39.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than would be charged for gas supplied to private consumers on the same premises through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter and the fittings used therewith. Provided always that the Company shall be entitled to charge one penny for any less quantity than one hundred cubic feet :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Company and the provisions of the Act of 1876 and of this Act applicable to ordinary meters shall so far as applicable apply to prepayment meters.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Declaration
by directors
of half-
yearly divi-
dends.

40. The directors may declare and pay a half-yearly dividend payable out of the profits of the Company for any half year ending on the thirty-first day of December without the sanction or direction of a general meeting of stockholders but no such half-yearly dividend shall exceed one half of the standard rate of dividend.

As to speci-
fication
of internal
fittings and
construction
and placing
of pipes &c.
between
mains and
consumer's
premises.

41. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

(1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's

mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :

- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specifications shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipes shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

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Power to lay
pipes in
streets or
roads not
dedicated to
public use.

42. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair or renew in across or along or out of such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay
down and
utilise pipes
for ancillary
purposes
across foot-
path.

43. The Company may in order to connect the lands described in the schedule to the Act of 1876 and the lands (A) described in the schedule to this Act with the lands (B) described in the schedule to this Act lay down place repair alter remove and renew mains pipes and culverts across the footpath on the western side of the existing gas works for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and for effecting telegraphic or telephonic communication between to or from the Company's works offices and showrooms and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts across the said footpath :

Provided that any telegraphs or telephones constructed and maintained under the authority of this Act shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Power to
require use
of anti-
fluctuators
for gas
engines.

44. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing

testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. A.D. 1904.

45.—(1) The Company may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes fittings and other apparatus appliances and things (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed repaired or removed.

Power to supply gas fittings and fittings not to be subject to distress.

(2) Any fittings let for hire under this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

46. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Gas consumers to give notice to Company before removing.

47. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Notice of discontinuance.

48. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter

Power to refuse to supply persons in debt for other premises.

A.D. 1904. — rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in
defective
meters.

49. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

No penalty
in case of
unavoidable
cause.

50. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the Act of 1876 and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Company
may enter
into contracts
for supply of
gas.

51.—(1) The Company may contract with any local authority company or persons beyond the limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

(2) The Company may enter into any contract with any person for a supply of gas to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price and otherwise as may be agreed upon between the Company and the person taking such supply :

Provided that the Company shall not under the powers of this subsection give any preferential price as between any consumers who shall take a supply from the Company under similar conditions and circumstances.

(3) The Company shall not supply gas under any such contract as aforesaid if and so long as such supply would interfere with the supply of gas to private consumers. A.D. 1904. —

52. The Company may if they think fit allow discounts or rebates not exceeding in the case of discounts for prompt payment ten per centum and in the case of discounts for large consumption or in respect of gas supplied by contract or for motive power fifteen per centum upon such scale and subject to such conditions and regulations as may be prescribed by special contract in writing between the Company and any of such consumers. Provided that such discounts shall be of equal amount under like circumstances to all consumers. Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent. Discounts.

53. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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The SCHEDULE referred to in the foregoing Act.

(A) A piece of land belonging to the Company forming the northern portion of the site of their existing gasworks and bounded on the west or south-west by the footpath on the western side of the said gasworks on the north or north-west partly by the field numbered 93 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1896) and partly by property belonging to Mrs. Annie Elizabeth Marter and on the east partly by High Street and partly by the said property belonging to Annie Elizabeth Marter.

(B) A piece of land belonging to the Company numbered 81 on the said Ordnance map bounded on the west or south-west by Collingwood Road on the north or north-west by the field numbered 82 on the said Ordnance map on the east or north-east by the said footpath on the western side of the said gasworks and on the south or south-east by the footpath in the rear of the cottages fronting on the north side of Crown Road.

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